

PRESS RELEASE

July 2025

Report to the Flemish Parliament and the House of Representatives

Granting and checking the combined permit

At the request of the Flemish Parliament and the House of Representatives and following possible irregularities, the Court of Audit has conducted an investigation into the combined permit. It found that the Flemish Service of Economic Migration (SEM) and the Federal Service of Immigration (FSI) have since tightened their checks on applications and improved their cooperation. A number of bottlenecks remain nonetheless.

Investigation

For employees from outside the European Economic Area who come to work in Belgium for more than 90 days, a single permit is required, which gives permission to stay (federal competence) and to work (regional competence). The Court of Audit investigated regulations for, processing of, control of, enforcement of and information provision on the single permit for the three largest categories of workers (highly skilled workers, medium-skilled functions on the migration list and other bottleneck functions). This did not include checking files for possible irregularities.

Processing of applications

The combined permit is applied for by the employer via a digital counter, after which the SEM (for Flanders) and the FSI process the applications sequentially. Since the alleged irregularities, both services have improved their application checks. The SEM reorganised and expanded its checks and the FSI also checks more thoroughly. Both services work with extensive, documented audit trails, updated checklists and manuals. Nevertheless, a number of risks remain. For example, the SEM automatically approves applications for a number of functions which appear on the list of shortage occupations and for which there are still local candidates, without specifically investigating whether the employer has made sufficient efforts to find them. Nor does the SEM provide for on-site control mechanisms in certain risk countries and the service still makes too little use of information from other types of applications. Furthermore, the SEM and the FSI automatically approve dozens of files without a full check, because the processing period has expired.

The SEM and the FSI do not always apply regulations strictly, often for pragmatic reasons, such as their own efficiency, the protection of employees' interests or continuity of employment.

By expanding their staff in 2023, the SEM was able to keep up with the increasing number of applications, but not to eliminate the historical backlog. The FSI did not provide the Court of Audit with figures on its processing times.

The SEM and the FSI have improved their cooperation, but are still too unaware of each other's verification steps. This is one of the reasons why some mistrust remains between

the two services. Both services also do not sufficiently monitor developments and dynamics, because, among other things, they do not keep sufficient figures on them.

Consular posts, which issue entry visa to employees, are not encouraged to suspend visa issuance in case of doubt, nor to inform the FSI.

The use of the single counter for the online applications ensures more efficient processing and access to relevant data. However, not all stakeholders involved (consular posts, municipalities, inspection services) have access to it yet and it sometimes takes a long time to adapt the unique counter.

Permit compliance checks

In general, permit compliance checks are carried out in accordance with regulations. The automatic data-driven check on permits granted by the Flemish Social Inspectorate and the SEM is not yet fully comprehensive. In practice, inspection services work well together, including with the police. However, there is a structural problem with regard to information sharing: federal and regional inspectors have only limited insight into each other's investigations.

Enforcement policy

Internal guidelines mean that the fines imposed by the Flemish Administrative Fines Unit are at the lower end of the fine ranges set by decree. In practice, they amount to 2,000 to 4,000 euros per infringement. Government has not yet investigated whether they still have a sufficiently deterrent effect.

Provision of information

The DEM often has to request additional information, which indicates insufficient and unclear communication about the required documents. Due to the complexity and language barriers, the websites are probably not very useful for most employees. They are therefore often dependent on their employer in this respect and generally do not know how to report abuse. Authorities do not make sufficient use of contact moments with consular posts and municipalities to provide information to the employee.

Response from the ministers

The Flemish Minister of Employment, the Federal Minister of Foreign Affairs, the Federal Minister of Migration and the Federal Minister of Employment all agree with the conclusions and recommendations of the report.

Information for the press

The Court of Audit exerts an external control on the financial operations of the Federal State, the Communities, the Regions and the provinces. It contributes to improving public governance by transmitting to the parliamentary assemblies, to the managers and to the audited services any useful and reliable information resulting from a contradictory

examination. As a collateral body of the Parliament, the Court performs its missions independently of the authorities it controls.

The report *Granting and checking the combined permit* has been sent to the Flemish Parliament and to the House of Representatives. The full version and this press release can be found on the Court's website: [**www.courttofaudit.be**](http://www.courttofaudit.be).